



THUNDERBOLT
Global Logistics, LLC

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 17-10

**AMENDMENTS TO REGULATIONS GOVERNING NVOCC NEGOTIATED RATE ARRANGEMENTS
AND NVOCC SERVICE ARRANGEMENTS**

COMMENTS OF JAMES S. SHAPIRO

I, James S. Shapiro am a Director and Co-Owner of Thunderbolt Global Logistics
OTI number 021287NF, based in Baltimore, MD. We have 1 office which is our HQ in Baltimore.
We are members of the National Customs Brokers and Forwarders Association of America
(NCBFAA). I submitted comments regarding docket 1704 on July 3, 2017.
Our company has taken full advantage of using Negotiated Rate Arrangements (NRA's)
and we are grateful that the Commission approved this exemption to tariff filing. It has
saved us significant annual savings in tariff filing expenses. We have converted the majority of
rate offerings to NRA's to our clients in the United States.

We support further enhancements to NRA's that will give us even more flexibility with our
clients and will allow us to continue to alleviate the administrative burden of tariff filing. We
would like to see NRA's allow for the following:

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Amendments of an NRA

Cargo tendered being sufficient as acceptance of the NRA

Provide more details other than just the rate such as

- Surcharges
- Credit/payment terms
- Free time/waiting time
- Demurrage/detention
- Expectations of service

The market for ocean freight is changing on a daily basis. Giving us the ability to modify an existing NRA will give us that flexibility. The current regulation doesn't allow for it. We need to be flexible with our offerings to our clients.

The act of tendering the cargo by the shipper to our company should be enough to deem the NRA accepted. It's a logical conclusion and should be adopted in the revised NRA rules. Needing a response in writing from the shipper is just another administrative hurdle to go over. We all want to transport the freight as quickly as possible.

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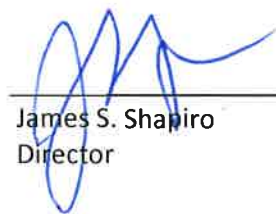
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We believe that the Commission should eliminate the requirement that the shipper must necessarily indicate its acceptance of the NRA rate quote by signing the document or otherwise memorializing its agreement in writing. We have never had an issue with a client over a rate using an NRA.

We agree with the Commission's proposal to eliminate the necessity for NVOCCs to file NSAs. One reason why NSAs are not used more often is because it is burdensome and costly to file them and their amendments. Currently we don't utilize NSA's however eliminating the requirement to file an NSA makes sense.

We also continue to support the elimination of the needs for NVOCC's to file Rate Tariffs. Shippers don't go into our tariff to check rates. They send us a request and we quote the rate. We do file rates when an NRA is not possible and this is an administrative burden we would like to see removed. It's from a bygone era that isn't necessary now.

DATED: January 29, 2018



James S. Shapiro
Director

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